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IN PIPEROCK ***



PRECEDENTS in PIPEROCK

By W. C. Tuttle

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Author of "A Bull Movement in Yellow Horse,"
"Honest to Doughgod," etc.

"Never heard of such uh thing! Never heard of such uh thing!" squeaks "Scenery" Sims, poundin' on the table so hard he spills several stacks uh chips.

Take uh half portion of uh man, squeeze his face out uh shape, and give him uh voice like uh bull fiddle with the asthmy and yuh got Scenery Sims.

"Safe and sane, eh?" he howls. "Why, dad bust it, fellers, our glorious forefathers never played things thataway! Way back in 1492, on that glorious day when George Washington said; 'Give me liberty or don't give me nothin', they didn't——"

"You got yore dates mixed, Scenery," opines "Mighty" Jones. "George Washington never was in the Civil War. Yore thinkin' of the days uh forty-nine. If we wants uh safe and sane Fourth uh July in Piperock, I reckon what George Washington said ain't goin' to prevent us. Them fellers was out uh date, Scenery. I'll leave it to Magpie Simpkins if things ain't changed uh lot."

“How do I know?” asks Magpie Simpkins, sheriff uh Yaller Rock County. “I reckon they has, Mighty, but if they ain’t, what’s the difference? The Constitution uh the United States and the lee-gality uh human interests gives us the right to celebrate uh holiday as we sees fit. If we desire to pass the Fourth without havin’ to wear crape or take up collections the next day there ain’t nobody goin’ to say us nay.”

“It ain’t right.” Scenery shakes his head, sad-like, and gazes at the few drops uh hooch still left in his glass. “Here I been figgerin’ on uh blowout, and now yuh opines to deprive me of it. I ain’t the only one, Magpie. Dog-gone, I reckon most every puncher in the country will feel the same way. Safe and sane——!”

“She ain’t goin’ to be no Quaker meetin’ at that,” states “Buck” Masterson, wipin’ off the bar with his sleeve. “There’s that baseball game between the Triangle and the Seven-A, uh patriotic speech by Judge Steele and somethin’ else.”

“What do yuh mean by ‘somethin’ else’? Buck?” asks “Dirty Shirt” Jones, neglectin’ his game uh solitaire long enough to git inquisitive. “Is it uh surprise or are yuh ashamed to name it?”

“She’s uh surprise, Dirty. Ain’t she somethin’ to look forward to, Magpie?”

“She shore is. Somethin’ what ain’t never been seen here before. Me and Buck bein’ members of the entertainment committee don’t have to tell all we knows. I can say, though, that it’s goin’ to shoot that five-hundred roll we collected. We opines that yuh shore got to pay fer high-class stuff, eh, Buck?”

“That’s whatever, Magpie. Also, that ball game ain’t goin’ to be no slouch, fellers. Yuh can give credit to Johnny Myers and Weinie Lopp fer that. They brings the idea back from Chicago, where they went with that train load uh Triangle cows. They went to see uh game there and——”

“Puts misery in my soul,” finishes “Swede” Johnson, the scantlin’-shaped foreman of the Seven-A outfit. “The Seven-A ain’t done uh tap uh work since them fellers got back. I tries to git uh li’l work done but they won’t even put uh saddle on uh bronc. I threatens to tie uh can on some uh them cow-chasers, and Hank Padden orates that I either learns the game or

he'll find uh foreman what will. Hank's crazier'n uh loon. Look at my hands. I'm learnin'."

"I reckon she's uh grand feelin' if yuh don't weaken," laughs Magpie. "We'll have uh li'l dance in the evenin', which will round out uh real pleasant holiday. This here business uh shootin' off dinnamite in the main street ain't sane uh-tall. Gittin' stewed and shootin' yore neighbors ain't no way to show patriotism. Killin' uh feller mortal is murder, even if yuh do it in fun, unless he's tryin' to kill you first. Safe and sane—that's the idea. Be patriotic, fellers—not loco. Let's pass the day and be able to git up the next mornin' without havin' to plant somebody."

"Them sentiments is fine as frog-hair, Magpie," agrees Dirty Shirt. "To hear you talk uh feller'd be plumb willin' to set in uh hammock all day and sip milk. You, bein' the sheriff uh this split-hoof community, probably argues to yoreself that uh safe and sane holiday saves labor fer you. Is Ike Harper partial to this celebration?"

"Ike is," sez I. "Last Fourth I almost gits my earthly envelope split up the middle with dinnamite, and now and evermore I'm uh disciple uh quietude and soft e-motions. Me fer uh soft spot on the greensward while I tunes my ear to nothin' more audible than to hear ol' Judge Steele orate, 'When in the course uh human events it becomes necessary fer——'"

"He ain't goin' to orate them lines is he?" snorts Mighty Jones. "Them ol' speeches is out uh date, and uh heap dangerous. Remember last Fourth in Paradise? Ol' 'Calamity' Kelly reads that out of uh paper to the multitude, and he gits so het up over it that he tears into 'English' George over in Chaffin's saloon, and we has uh pair uh invalids on our hands until snow flies. English George is uh Swede, but dang his hide, he don't care what country he fights fer. If the judge is goin' to orate them words we better be shore and keep everybody sober."

"Speakin' of this here baseball thing," sez Scenery, weary-like, "is there any chance to win or lose uh li'l money? If I can't be noisy I'll be sporty."

"The Seven-A will cover uh li'l," states Swede. "I been hit on the nose, slammed in the ribs, and got blisters on my hands. If sufferin' causes uh good baseball nine I reckon the Seven-A will have the world's champions by that time."

“Jist how is she played and what does she re-semble, Swede?” asks Mighty. “I ain’t never seen uh game of it.”

“You ain’t no oddity,” consoles Magpie. “Weinie and Johnny is the only ones what have, so we got to take their word.”

“Yuh use uh ball and uh bat,” states Swede. “There’s three bases and uh home. Yuh can’t tally uh run till yuh git home. Sabe?”

“Lucid and not elaborate,” sez I. “Jist tally one fer me in about five minutes. Whenever anybody goes into statistics thataway it wearies me and I must seek solitude. I allus did detest uh feller what outlines everything thataway, and if you Jaspers can git along without me I’ll go home and put uh pack on my hoss.”

I gits my outfit and leaves Piperock. This here safe and sane idea was started by Magpie Simpkins, and she seems to find fertile ground in the minds uh most of our prominent citizens. I ain’t crazy about it. Piperock allus has been uh hy-iu place on the Fourth uh July. She’s been uh place where uh timid man hadn’t ought to be on that glorious occasion unless he’s imbibed enough hooch to make him scare-proof. She’s uh hellwinder from the cinch both ways. I shakes my head as I tops the ridge and looks back.

“The world shore does change,” sez I to my pack animile. “That used to be uh man’s town, but they’re tryin’ to put it on uh milk diet. Pretty soon they’ll arrest uh man down there fer dreamin’ that he’s packin’ uh gun. She won’t be no more inhabitable than Boston. Well, gol blast it, uh man don’t have to live there unless he wants to, so what’s the use uh talkin’?”

I pilgrims way back in the Sawtooth Mountains to do assessment work on uh li’l claim that me and Magpie owns, and it’s the third uh July when I tops that ridge ag’in and sees Piperock.

She shore is dressed up. They got flags stickin’ around most every place, and the front uh Buck’s place is draped with red, white and blue. Th’ ol’ town shore looks good after two weeks uh solitude and hard rock drillin’.

I winds down to the bottom of the hill. As we hits the bottom my ridin’ bronc shies aside and my pack animile sways back on the rope so hard that Ike Harper sets down hard on the earth. Both broncs hurries homeward.

“Shafe and shane,” mumbles uh voice behind me. “An-tishep-tic.”

I rolls over and looks back. There sets Scenery Sims and Dirty Shirt Jones. They're in the shade of uh mesquite, and when I looks around Scenery shakes up uh bottle uh hooch till she foams. They both nods wise-like at me and takes uh drink. Scenery takes the bottle away from Dirty, and weaves over to me.

"Ike," sez he, "are you or are yuh not? Answer to the bes' uh yore ability."

"Am I or am I not what?" I asks.

"In favor uh me and Schenery and glorious freedom or in favor uh shafe and shane. Me and Schenery we formed 'fensive allian'sh. Sabe? Wan' to jine, Ike? We're proselytes, eh, Dirty?"

"Ol' Wesht goin' to the dogs," wails Dirty, wipin' tears out of his eyes. "Needs reshurectin', Ike. Needs it bad—bad!"

"Yesshir," agrees Scenery, at the top uh his squeaky voice, wavin' the bottle around his head. "She shore needs uh pill. Me and Dirty is goin'——"

"Don' drop the bottle!" wails Dirty, but he sends out his warnin' too danged late.

Scenery gits too elastic in the body, and sprawls on the ground and the bottle breaks its spine on uh rock. Scenery sighs deep-like and welcomes slumber.

"There yuh are!" groans Dirty. "Only man on earth what'll keep me comp'ny on National birthday, and now he's gone to schleep on the job. Piperock's too sanitary, Ike. Baseball, schpeeches and b'loon. Who'n —— wants b'loon. Whole day an' night ahead and only six quarts lef'. Look fer drouth this sheason. Goin' t' have b'loon an'——Scenery, yore uh pore ol'——uh——uh hum." Dirty retires.

I rolls 'em both into the shade, and kicks Dirty on that part uh the anatomy which was built fer that purpose.

"Dirty!" I yells. "What was that thing yuh mentioned? What's uh b'loon?"

"Fool'sh," mumbles Dirty. "Goin' up in b'loon. Da' fool!"

I leads myself up to our cabin, and finds Magpie settin' on the steps. He's got all the skin peeled off his nose, one eye is puffed up some bad, and he's rubbin' hoss-liniment on his hands.

I sets down beside him, and watches the operation.

“Hello, Ike,” sez he, after a while. “How does she look?”

“Worst I ever seen,” I states. “Who yuh been arguin’ with?”

“I ain’t speakin’ uh my appearance,” he snaps, throwin’ the empty bottle out into the yard. “I’m askin’ about the mine.”

“Magpie, if I had a face like you got I wouldn’t give uh second thought to the best mine on earth. Where’d yuh annex it?”

“I was the ketcher today, Ike.”

“Evident,” I agrees heartily. “You shore were. I don’t reckon that anythin’ got past yuh, ol’-timer. I’d designate that yore uh stopper, also.”

“Ike.” Magpie pronounces my name like it was sacred. “Ike; yo’re ignorant. Jist plumb ignorant. Uh ketcher is an accessory to uh baseball nine.”

“To look at yore face and then make uh guess I’d opine that you been accessory to uh murder. If that’s the way she acts I’m in favor uh capital punishment fer baseball. Say, Magpie, when I comes in I finds Scenery Sims and Dirty Shirt out east uh town in the mesquite. All they got left to drink is six quarts uh hooch.”

“Pitiful,” agrees Magpie. “But then, maybe they can sober up enough to walk in after more.”

“Dirty orates somethin’ about uh b’loon, Magpie. What did he mean?”

“Balloon ascension, Ike.” Magpie fergits his sore spots, and gits some excited. “That’s shore goin’ to be some stunt. It cost us five hundred, Ike. This here balloon feller was over in Helena, and we hire him to come over here and show off on the Fourth. He goes way up yonder in the air, Ike, and then cuts loose with nothin’ between him and the dust but uh riggin’ what looks like uh umbreller without no spine. He’s nervy.”

“How’s the baseball game comin’ on?” I asks.

“Huh!” Magpie looks at his blistered hands, and rubs his fingers light-like over his peeled nose. “I reckon she’s doin’ nicely, Ike. Yuh see, they didn’t have enough players at the Seven-A, so I volunteers my services. I wish now that I’d kept my blamed face shut.”

“Must be uh right lovely pastime,” I opines.

“Great sport,” agrees Magpie. “Yuh see it’s this away, Ike; uh baseball nine consists uh nine——”

“Don’t apologize, Magpie. Go right ahead and git hurt. Don’t try to make me an authority on the thing. How’s the safe and sane idea comin’?”

“Fine! It shore has the ol’ order uh things beat four ways from the jack. We aims to jist loaf durin’ the forenoon. Long about one o’clock Judge Steele will mount the platform and orate the Declaration of Independence, and uh few well chosen words. Then ol’ Bill Thatcher’s or-kestra will render uh few airs. Then comes the balloon ascension. Immediately follerin’ that will come the baseball game between the Seven-A and the Triangle outfits. In the cool uh the evenin’ we’ll shake uh hoof in the Mint Hall. Ain’t that uh lot better’n blowin’ up the town and killin’ folks, Ike?”

“Anythin’s better’n murder, Magpie. Scenery and Dirty shore must be uh bloodthirsty pair to object.”

“Them two pelicans is blots on the earth,” orates Magpie. “They comes out yesterday to see us practise. Dirty makes uh bet with Scenery that he can shoot and hit the baseball when somebody bats it out. Uh course nobody knows about it until Dirty’s gun explodes, and Pete Gonyer’s new sombrero gits ventilated. Pete’s sore as uh boil, and he opines to slap Dirty to uh peak as soon as the Fourth is over.

“Scenery steals uh strip uh buntin’ from in front uh Wick Smith’s store and ties it to the tail uh Sam Holt’s ol’ milk cow. They finds the buntin’ over on the east bank of the Li’l Muddy, and that cow’s tracks is pointin’ towards Philadelphia. What yuh goin’ to do with uh pair like that?”

“Well,” sez I, “yuh can’t reform everybody, Magpie. Yuh might assess ’em double fer the amusements, ’cause they’ll see double. In order to foller out the general scheme uh things I suppose that Buck will close his place all day, eh?”

“No-o-o. Yuh see, it’s jist as you said, Ike. Yuh can’t re-form everythin’ to oncet. Anyway, safe and sane don’t mean arid. I’m uh li’l worried about this baseball thing, though. I reckon everybody except you has got uh bet on it. We’re goin’ to beat the tar out uh them Triangle cow-chasers, Ike, so I’d advise yuh to place uh li’l money on it.”

I never bets on uh sure thing thataway. The Harper tribe don’t wish to take any man’s money without givin’ him uh run fer it so I don’t bet on the

game. I'm sort uh interested to see how the safe and sane idea is goin' to pan out, but I can't seem to censure Dirty and Scenery fer their attitude.

The next mornin', contrary to usual customs, passes without no casualties. Dirty and Scenery comes in town, gives three cheers fer each other and then goes to sleep under the speaker's platform.

I meets ol' Judge Steele, and he's dressed up like uh plush hoss in his swallertailed coat and hard hat. Also, he's got his whiskers curried until they stands out like uh Rooshian's.

"Ike," sez he, indicatin' under the platform, "It's uh howlin' shame fer uh bright and shinin' community like this to have to harbor uh pair uh disgraces like that. They toil not, neither do they spin."

"Jedge," sez I, pattin' the ol' boy on the shoulder, "no matter how black the cloud may be there is still uh chance that it has uh silver linin'; maybe they'll be drunk or asleep most of the time."

I buys the Judge uh brace uh drinks, and he gives me sort of uh special performance. When the Judge orates with uh few jolts under his belt he favors uh windmill uh heap. While I don't care fer the words I'm charmed with the music. He shore can slide his voice from uh mockin' bird tenor to down in uh well with wooden teeth.

I pilgrims out to the lot where the balloon-feller is sewin' up his utensil, and I finds most uh Piperock out there. There's more kids and dogs out there than I ever thought existed. The balloon-person is sort of uh runty lookin' animile, with squirrel teeth and squinty eyes. He smokes cigarets what smell like uh Bohunk's whiskers was on fire, and acts as cocky as uh pine-squirrel full uh nuts.

Findin' that there ain't nothin' in watchin' uh feller sew canvas that gives me uh patriotic thrill I wanders back to Buck's place and horns into uh poker game. I don't go broke until it's time fer the speakin'. When I goes out there's uh crowd around the platform, and the judge is settin' up there in lonesome majesty, with uh tall pitcher uh water and uh glass at his elbow.

The or-kestra busts loose about that time and everybody cheers except me. I'm too sober to appreciate "Sweet Marie" played in march time on uh bass drum, banjo, guitar and uh bull fiddle. There ain't nothin' to stir yore

pulses in that piece. If uh man had to go to battle to music like that he'd shore kill the band first.

Everybody congratulates the orkestra—except me, and then we turns to the speech-maker.

Hank Padden climbs up on the stand and takes off his hat. I can see that Hank's organized.

"Ladies and gentlemen," sez Hank, "it is my duty on this pleasant occasion to have the pleasure on this here occasion—to have the pleasure to do my duty on this——"

"Git back and take uh fresh start, Hank," advises Dirty Shirt, in uh loud voice, from under the stand. Everybody sniggers, and Hank gits purple behind the gills. He shifts his gun around to the front and clears his throat.

"Ladies and gentlemen—all except one," begins Hank, ag'in, but the voice uh Scenery Sims squeaks from the other end of the platform:

"Don't slander yoreself thataway, Hank. Keep yore mouth shut and people what don't know yuh won't know that you ain't uh gentlemen."

Hank walks to the edge and peers under, but Scenery is out uh sight, and Hank proceeds:

"It is my duty on this solemn occasion to have the pleasure of introducin' to you uh man who is knowed far and wide as uh—uh—uh——"

"Tell the truth, Hank," advises Dirty Shirt. "No matter how painful it may be to the judge, tell the truth."

"Is the sheriff within call?" asks Hank, lookin' us over.

"In whisperin' distance, Hank," replies Magpie.

"I'd applaud yore efforts if you'd put them two hombres in jail," states Hank. "It'll save uh killin'."

"What'll I charge 'em with, Judge?" asks Magpie.

The judge takes another drink out uh that pitcher, and wipes his whiskers careful like. He's done took seven drinks since he sets down up there, and I marvels exceedin'ly. As uh rule the judge only admires water as an excuse fer buildin' uh bridge.

"Sheriff," sez he, solemn like, "thish is exceedin'ly hard matter to adjudicate. Better warn 'em, Sheriff. Tell 'em 'f they do it ag'in we 'dopt stern measures. Sabe? Go on, Hank."

The judge re-lapses in his chair and takes another drink uh water.

“As I was sayin’,” begins Hank, ag’in, “I’m up here to introduce to you uh man who is knowed far and wide as uh square dealer and——”

The judge grins foolish like, and heaves hisself up in front uh Hank, spoilin’ his oration. He leans over and shakes hands, solemn like, with Swede Johnson and Weinie Lopp, and then puts his hard hat on the back of his head.

“I’m much obliged to Hank fer his compliments and well wishes,” sez he. “While it ain’t no more’n I deserve I’d just like to say——”

“Bing! Bing! Bing!”

Somebody is punctuatin’ the judge’s remarks with uh six-gun, but they ain’t close at hand. As near as we can figger it’s over near the balloon corral.

“I’d almost make uh bet it’s Dirty and Scenery,” states Magpie. “I reckon I’d better see what they’re doin’.”

The judge listens uh while with the crowd, and then imbibes another drink uh water. He shore relishes that water. Hank casually sniffs at the water, and fans hisself with his hat. Pretty soon he gits dry and takes uh glass full. The judge leans ag’in the railin’ and borrows uh cigaret from Pete Gonyer.

“Hadn’t yuh better go on with yore oration, Judge?” asks Pete. “It’s gittin’ late.”

The judge straightens up, puts his left hand inside his vest and clears his throat: “When in the course uh human e-vents it becomes necessary fer one person to——”

“Hey!” yells uh voice from the edge of the crowd. “The balloon’s about to rise!”

The kid who does the yellin’ worms his way to the platform and pants out:

“Dirty Shirt and Scenery went over where the feller was gittin’ his balloon ready, and they shot holes in his kerosene cans. That’s all the kerosene he’s got so he’s usin’ up what’s left right now. Somebody better hurry ’cause there ain’t nobody to help him except Dirty and Scenery.”

“While the information is unpleasant it ain’t vital,” states the judge. “My oration comes first, and in spite uh Dirty Shirt Jones and Scenery Sims I’m goin’ to——”

“Look out!” yells Ricky Henderson, who was sort uh hangin’ onto the railin’ of the platform. He grabs his hat and gallops out of the main herd. The crowd takes uh look and follers suit.

It’s the balloon. She don’t seem to act accordin’ to plans and specifications, and uh second look tells us why. Up the street she comes, jist barely off the ground, and behind her comes Dirty Shirt on his bronc. That bronc is what’s keepin’ the balloon from performin’ her natcheral intentions, fer the reason that from the balloon run uh rope which is snubbed to the saddle horn.

Behind the leaders comes the li’l balloon person and behind him trails the risin’ population uh Piperock and their dogs.

We dodges to places uh safety, and watches the rag cyclone. The wind is sendin’ her along like uh tumble-weed, and from her rear end comes uh trail uh black smoke. There is times when Dirty and his mount is plumb off the ground, and jist when they’re about to hit the speaker’s platform the cinch busts. The bronc spills on his head in the street, but Dirty and the saddle comes right on. Jist as they hits the platform, the saddle flips under and over the railin’ and Dirty tangles with the judge and Hank Padden.

Comes uh rip and uh whoop, and the platform, Hank Padden, Judge Steele and Dirty embarks on uh voyage.

Bein’ foolish is uh trait of the Harper tribe. Somehow I figgered that I was man enough to stop that craft, so out I goes and grabs uh rope. I immeediate and soon finds that I’m jist uh passenger on the thing, too.

Up the street we goes on our merry way, bumpin’ and splinterin’ and cussin’ in uh cloud uh dirty smellin’ smoke. I gits uh glimpse of that tree in front uh Sam Holt’s place, as I peers through the smoke. We’re headin’ straight fer it and before I has time to hop off, comes uh sickenin’ thud, and Ike Harper don’t remember nothin’ except uh sweet odor and uh splashed feelin’.

I wakes up fully rested, and finds Scenery Sims settin' beside me. He's all alone beside me, and he's holdin' the remnants of uh glass pitcher in his hand. When he sees me set up he slaps hisself on the leg and whoops:

"By cripes! I win! They all said yuh was dead, Ike, and I makes uh five-dollar bet with Dirty that yuh wasn't. I stayed to see if yuh was, and also to see that Dirty didn't come back to try and cinch the bet."

"What was it, Scenery?" I asks, havin' forgot the reason fer my alleged demise.

"Gin!" snorts Scenery, smellin' of the pitcher. "Jist plain gin, and I thought it was water! No wonder the judge licked it up."

It all sort uh comes back to me, and I looks around.

"You was out fer some time Ike," states Scenery. "Everybody has gone to the ball game but you and me. I don't reckon the balloon was hurt any. The judge split his swaller-tailed coat and tore the rim off his hard hat. Outside uh them few minor incidents I reckon it was uh success. How yuh feelin', Ike?"

"Tolable," I states. "I reckon we might as well go and see the ball game, Scenery. Did you place any bets on it?"

"Uh-huh. Me and Dirty both unhook with our roll but I'll be uh liar if I knows which team we favors. Mebby somebody knows."

We goes down to Buck's place but she's deserted. Not uh soul in sight. Dirty Shirt is settin' there on the bar, but he don't count. He ain't got no soul.

"Ike," sez he, "that was one gran' aschenshun, eh?"

"You ought to be lynched!" I states. "You busted up the Declaration of Independence."

"Have uh drink on the house," grins Dirty. "Me and Scenery's busted Cons'-tution of United States, Ten Com'-and-ments and Declaration 'f Independence. Reckon we better make perfect score and busht our danged necks, eh, Scenery?"

Dirty rests his head on his hands and goes to sleep.

"Disgrashful!" wheezes Scenery. "Worsht Fourth I ever had. I got inshomnia and Dirty's got sleepin' sickness. Fine pair! All thish worl' 's sad an' dreary everywhere I—hum-m——"

I takes their six-guns and hocks 'em to Buck fer uh quart uh hooch. The fact that Buck ain't there don't bother me none. I puts the guns under the bar, and takes the bottle. Fair enough. I finds the balloon feller still on the job. He's got his big smoke-bag down at the same place, and he's settin' there on uh rock, lookin' like the jury had jist said: "Guilty." He imbibes about the full of uh mewl's ear out of my bottle and sighs deep-like.

"Makes things look brighter?" I asks, but he shakes his head.

"It can't be done," sez he, wipin' uh tear off his long nose. "They asks more'n mortal man can do."

"Knowledge comes before sympathy," I orates, and he explains:

"Them fellers won't pay me that five hundred dollars. They opines that I contracts to fly and that I ain't never flew. They states that the feller on the hoss is entitled to it because he got plumb off the ground. If it hadn't been fer him I'd uh been all right. When the bag begin to pull his hoss got scared and—well, you saw what happened."

"Yes," sez I, "I saw, felt, heard and smelled it. Can't yuh fix her up so she'll fly ag'in?"

"Mebby if I had help. I got almost enough kerosene to fill her ag'in. If I don't land this money I got to walk out. By the time that ball game is over it'll be dark, and I can't fly in the dark."

"Dirty Shirt and Scenery is both asleep up in Masterson's saloon, and if yuh could wake 'em up yuh might git 'em to help yuh out. They'd do most anythin' to git the committee to loosen up on that five hundred. Jist explain to 'em that yore gittin' the worst of it on the safe and sane idea, and I'm bettin' you'll git help."

"I'll try," sez he. "I ain't got uh hope left but I'll try."

I watches him amble up town and then weaves down to the baseball range. The crowd is all out on uh flat above the jail, and accordin' to the conversation I hears when I gits in yellin' distance, there's uh difference of opinion. I'm almost an integral part of the herd when out comes Hank Padden, Slim Hawkins, Johnny Myers and Magpie Simpkins. They meets me in uh body.

"Ike," asks Slim, "how is yore affections pointin'?"

"My dad was uh Missourian and maw was uh Swede. I leans strong towards Democracy and I hate sheep."

“We ain’t interested in yore ancestors and politics,” states Johnny. “What we wants to know is, does yore heart quicken more at the mention of the Seven-A or the Triangle?”

“My heart’s plumb normal, Johnny,” sez I. “It takes more’n the mention of two bum cow-outfits to affect my pulse. What’s the main idea of the fool question?”

“He’ll do,” grins Slim, and the rest of ’em nods, wise-like.

Magpie takes me by the arm and waltzes me out in front of the crowd.

“Ladies and gents, here’s the empire,” he announces, dustin’ the ground with his hat.

The crowd gits hilarious in their remarks and I gits sore.

“Magpie,” sez I, “jist as soon as I finds out the meanin’ uh that word when it’s applied to uh human bein’ there’s shore goin’ to be room fer one more Simpkins in Piperock. I’m jist uh pore ol’ pelican of uh person, but I’m danged if I wants to be slaughtered to make uh safe and sane holiday. I won’t stand fer to be made fun of thataway.”

“Fun ——!” snorts Hank. “Ike, yore honored!”

“I’ll be danged if I am. I’m half drunk and the other half peeved. What’s the joke?”

“Ike,” sez Buck, handin’ me uh roll in uh buckskin sack, “I wish yuh to hold this here money. You, bein’ absolutely neutral like, are the logical one to hold it. Yuh see the money belongs to either Dirty or Scenery. Dirty gives me two hundred and fifty to bet on the Seven-A, and when Scenery opines to wager that amount I matches the bets. You pay to the winner. Sabe?”

I stuffs the roll in my pocket, and Slim pats me on the shoulder.

“Yore to be the referee uh this here game, Ike,” sez he. “It’s up to you to pass judgment on the outs and safes. Yore the only person in Piperock what ain’t placed uh bet on the game and that places yuh in uh position uh trust. Sabe?”

“Uh-huh,” I agree. “Bein’ uh li’l rusty on the fine points of the game I’d be glad to have somebody wise me up uh li’l.”

Right then I gits uh load of information. Ain’t it wonderful how much uh feller can listen to in five minutes? Uh course I don’t remember much of it, but I shore hears uh lot fer uh person with only two ears.

As near as I can tell, uh ball game consists uh nine men on uh side. I'm there to tell when uh man's out and also when he ain't. Also, when the pitcher person throws uh ball over uh certain piece uh board, and the feller what's waitin' there with uh club don't hit it, I'm to yell, "Strike!" If it ain't throwed over I yells "Ball!" I absorbs the information that if somebody ketches uh hit ball the feller what hit it is out. The main idea seems to be that uh feller's got to run all around that square, touchin' each sack uh sand and finally step on that piece uh lumber without bein' called out by me, and that tallies one point fer his side.

"Now that yuh knows all about it, Ike, yuh might as well yell, 'Play ball!'" informs Magpie. "Jist yell what I told yuh to, and we'll show this here congregation some game. I'm pitchin' fer our side, and I'll wise yuh up as we goes along. I wants yuh to keep yore eye on this here ball cause she's goin' to perform different than yuh think. Ike, I ain't never told yuh that I can throw uh crooked ball have I? Uh harness drummer who was down at Curlew showed me how to do it."

"Well, Magpie," sez I, "far be it from me to criticize uh feller blunderer, but I'm uh heap sad-like to find that my ol' pal is startin' to learn the crooked parts of uh game before he learns the rules."

About this time the crowd begins to yell unpleasant things, and out hops Johnny Myers with uh war club. He braces hisself over that piece uh lumber and spits on his hands.

Slim Hawkins and Swede Johnson is off to my right and behind me is Ricky Henderson. To my left is Pete Gonyer, and way out like uh sort of uh rear guard stands Mort Blackwell, Hen Peck and Andy Johnson.

"Ike," sez Magpie, as the cheerin' dwindles, "watch me twist this one."

He did. He twisted it so danged much that it cut across lots and slaps plumb ag'in ol' Sam Holt's stummick. Ol' Sam is some larded around the equator, and it takes some prospectin' to locate the ball. Pore ol' Sam is uh heap disgusted and favors his insides when he walks.

"Throw her over, yuh cross between uh lodge-pole and uh picket-rope!" yells Johnny, poundin' on that piece uh lumber with his club.

I'd opine that baseball ain't no game fer uh feller to git absent-minded when playin' same, 'cause while Johnny is takin' his spite out on that piece uh lumber Magpie hits him in the butt of his ear with the ball. Johnny drops to his knees, gits right up and walks circles like uh pup tryin' to git wound up fer uh sleep.

Not havin' any such rulin' explained to me I turns to Magpie fer uh li'l light on the subject.

"Yell 'Out!'" whispers Magpie.

I did. Somehow I don't reckon it was the right word, cause that whole danged bunch uh Triangle hoss thieves comes out to visit me. Immediate and quick I'm surrounded with uh conglomeration uh punchers and the talk drifts to serious subjects.

"Out!" yelps "Cobalt" Williams in my ear, makin' faces like uh hired murderer. "Why you cross between uh pole-cat and uh hunk uh cheese, that was uh dead ball."

"——!" sez I, sad-like, takin' off my hat. "Did it kill the ball?"

"He ain't out!" whoops "Half-Mile" Smith, walkin' on my shins with both feet. "He's entitled to his base."

"Well," sez I, "there ain't nobody stoppin' him is there? If it's his why don't he go and git it? If it's goin' to cause uh commotion like this he can have 'em all so far as I'm concerned. Jist to show that I don't begrudge 'em to him I'll help him carry 'em home. Mebby I was uh li'l previous in my judgment, gents, I believe I spoke before I looked close-like, so I rules that he's only partly out."

"Cripes!" snorts "Tellurium" Woods, "I wish we had uh man with uh few brains."

"So do I, Tellurium," I agrees, heartylike. "If I could find three of 'em I'd take 'em up town and start uh four-handed poker game."

Johnny Myers limps up to the base that Pete's guardin', and stands on it with both feet. Ain't it funny how uh wallop on the head makes some people limp?

"That's all right, Ike," sez Magpie, when he sees me lookin' at Johnny. "He gits to first fer nothin'."

I nods my head but I got my own opinion. Fer nothin', eh? I suppose if he had shot Johnny with uh .45 they'd have ruled it uh scratch.

Now up comes Cobalt. I reckon he's nervous, and don't wish to git his base fer nothin', cause he takes his stand quite uh ways from that piece uh lumber. Magpie waves that ball around his head uh few times and lets her go.

The ball didn't go noways toward Cobalt, but I don't reckon that Cobalt knowed it. He swings hisself plumb off his feet and the club sails out of his hands.

It changes ends about seventeen times and hits "Slim" Hawkins square on the wishbone. Slim expels all the air out of his system and collapses.

This time I ain't goin' to show my ignorance of the game. I gallops right over, grabs Slim by the back of the neck, and starts haulin' him over to Pete's station.

"Say, what do yuh reckon yore tryin' to do?" yells "Sourdough" Watson.

"In uh case like this, Sourdough, he's entitled to his base. I'm sick uh bein' interfered with. Sabe?"

"Ike, yuh danged fool, Slim's on our side!" howls Magpie. "He ain't entitled to nothin'."

"Ain't, eh?" I snaps. "The least we can do is to give him uh decent burial. Mebby accordin' to rules he ain't entitled to nothin', but jist the same he's uh friend uh mine and I won't stand around and let the coyotes git him."

Jist then Slim wheezes and sets up.

"That's the sixth time that bronc's dumped me," he states, foolish-like. "By cripes! I ought to have pulled leather when I sees him pitchin' over that rockpile thataway."

Uh delegation uh citizens comes out and removes Slim, still protestin' that he'll bet ten dollars he can ride that bronc.

Uh li'l runt named Blinky Bowers takes Slim's place, and the war is on ag'in.

Cobalt hits the next one. Jist why I didn't git out of the way I don't know. Uh course uh empire's duty ain't to git in the line of the ball, but dang it all, I couldn't help it. I puts up my hands like I saw the rest of 'em do, but the ball pilgrims right on through and busts me right on the nose.

After the church bells stops jinglin', they notifies me that the Triangle has got one score. I proposes three cheers fer the Triangle but there ain't no response. My voice is weak and I'm surrounded by Seven-A sympathizers.

Ren Merton is the next one to have uh try at the ball. Ren is as long as uh rustler's dream, and he hits that pore li'l defenseless ball with everything he's got from his boot-heels on up to his hat.

Over to one side uh bunch uh dogs is holdin' uh convention, and that ball enters their midst on the hop. Uh hound pup, belongin' to Scenery Sims, tries to masticate that ball, with the results that when we ropes that pup the ball is some weak in the seams.

"Yeo-w-w-w!" whoops Johnny Myers. "That makes three runs fer our side! Cobalt finishes up his run and Ren tallies uh home run."

"I wish to state," sez Judge Steele, holdin' up his hand like Ajax defyin' the lightnin', "I wish to state that them two last tallies don't count. Wait uh minute, Johnny! Don't git excited. This here celebration is uh heap safe and sane so far and we don't wish to sully it, and it makes me nervous in the trigger finger to see uh feller fussin' with his gun thataway. Now, them danged dogs ain't got no business there uh-tall. Natcherally they interferes with the proper interpretation of the rules to the extent that Mister Harper has to fall back on legal practise.

"Me, bein' uh legal licensed dispenser uh justice, is qualified to adjudicate this difficulty, and I wishes to hereby confer in private with the empire. May I have the privilege, Mister Harper?"

"Judge," sez I, uh heap relieved, "I'm reciprocative to advice. I'm willin' to do anythin' except to try to smell. I shore got some nose on me."

The judge leads me away from the admirin' throng and gits confidential.

"Ike," sez he, "have yuh uh bit uh likker on yore person? I feels like uh drought in Death Valley, and uh shot uh pain-killer would elevate me uh heap."

I slips the ol' boy uh bottle, and he depletes it to the bottom of the label. Then he pats me on the back and whispers:

"Ike, ol'-timer, I got six head uh broncs and eighty pieces uh silver bet on the Seven-A to win. Sabe? One uh them broncs is that runnin' hound of uh blaze-faced sorrel you admires. Do yuh still covet it?"

“I bows to superior judgment,” sez I. “Let’s go ahead and see how bad the Seven-A can beat that bunch.”

I announces to the crowd that me and the judge has threshed out the verdict accordin’ to the rules of love, life and leegality to all mankind, and has decided that them two tallies don’t count fer the reason that the ball has been interfered with.

I find that our decision causes immediate discord. Half-Mile Smith is the first one to greet me.

“You danged sheep-stealer!” he howls, walkin’ around me like he was lookin’ fer an easy place to start eatin’. “Yore tryin’ to throw this here game to the Seven-A. Dad bust yore soul!”

“Gentlemen!” sez I, holdin’ up my hand in the Piegan peace sign. “Let there be no blood shed. Let us not git up in the dewy mornin’ with our hearts filled with sadness and regrets. I has had legal advice on the action and, coupled with my natcheral admiration fer fair play, I rules as I do.”

Seems to me that some folks knows more about me and my ancestors than I do, and I learns uh heap right there. Fer instance, Sourdough Watson informs me that my granddad stole pennies from uh blind man. I has to laugh when Cobalt states that I’m uh direct descendant uh Jesse James. That jist shows how men make mistakes when they’re excited.

“Bantie” Weyman and “Sig” Watson each hits three times and misses. Half-Mile Smith jist touches one with his club. It glances off and hives up in Weinie’s bosom, and Weinie hangs onto it instead of his wind, and nearly dies.

Magpie explains to me that it’s uh foul ball, and that Half-Mile is out, so I rules likewise to the satisfaction of all men present.

“Now we goes in to bat,” sez Magpie, and I gits glad right away and walks in with him. I feels the need of uh li’l rest, but the Triangle gang objects.

“You empires fer both sides,” explains Johnny Myers, and I has to amble out there ag’in.

“If yore sense uh fair play ain’t molderin’ in the grave yuh might give the Triangle uh li’l the best of it now,” whines Tellurium.

“Tellurium,” sez I, “if folks in Piperock played fair with you and themselves we’d be enjoyin’ uh lynchin’ instead of uh ball game right now. If you don’t stop kickin’ about things what is too deep fer yore meager comprehension I’m goin’ to git some blanks fer uh .22 pistol and shoot yore brains out. Sabe?”

Magpie Simpkins is the first batter fer the Seven-A. If Magpie never does another thing he shore can point with pride to the fact that he’s hit uh ball further than it’s ever been hit before or since in Piperock.

He slams that pore li’l ball plumb out to where Tellurium is standin’. Tellurium is baldheaded, and he opines to play without uh hat. Somehow that bald head seems to act like uh magnet fer the ball. Tellurium can’t seem to look right into the sun, and jist stands there like uh stachoo. When the ball and bald head comes together there’s uh slitherin’ sound, and said ball hits the high places off into the sagebrush. I rules that it’s legitimate fer Magpie to count one run, and the Seven-A outfit gits delirious. That makes one run each. The judge comes out and congratulates me on my judgment, and takes the rest of that bottle back with him.

“She ain’t goin’ to stand much more,” complains Johnny Myers, holdin’ the ball out so I can look her over. It shore looks weak in the seams.

“Git uh new one,” I advises, but Johnny shakes his head.

“Can’t be done, Ike. We’ve done used this one fer two weeks, and figgered that she’d finish the season fer us but I has my doubts. This is the only one there is.”

Weinie Lopp comes up to that piece uh lumber and bows his back like uh bull buffalo with uh peeve.

Johnny throws the ball as hard as he can and Cobalt ducks out from behind Weinie and slides fer safety. He didn’t need to be scared cause that ball never got past Weinie. He cuts loose with that club and busts that ball plumb in two.

Yes sir, he jist simply annihilates that ball. One-half, or what I’d designate as one-half of it, rolls out to me, and the other portion defies gravity long enough fer Ren Merton to gallop under it and clasp it to his bosom.

Weinie takes one look and gallops around the station. On the second one he gits his spurs tangled in the sack and sprains his ankle, but he’s game to

limp the rest of the way.

“He’s out!” whoops Johnny Myers, dancin’ up and down on his hat, but I holds up my hand fer silence. Piperock comes out to me in uh cluster and they all opines to talk to oncet. Nobody could live in such uh atmosphere, so I tears loose and pulls my gun. If I must die I’m shore goin’ to die hard.

“Put up yore gun!” howls Half-Mile. “He’s out and that’s all there is to it.”

“I’ll put up nothin’!” I announces. “If you danged howlin’ pack uh coyotes will shut yore yap fer uh minute mebbly I’ll render judgment on it.”

“Be guided by yore conscience, Ike,” advises the judge.

“No game!” yells Bantie. “No game uh-tall! The Seven-A has got one run and so has the Triangle. We can’t settle no ties fer the reason that we ain’t got no ball. It’s jist uh tie game, and that’s all there is to it.”

“Lissen,” sez I. “I was elected empire uh this here pastime, wasn’t I? Didn’t yuh tell me that I was to do the rulin’ on it at all times? Didn’t yuh all agree to accept my judgment?”

“Mister Harper speaks true,” orates the judge. “You-all gives him power of attorney to render uh verdict accordin’ to the evidence.”

“I’d propose,” squeaks Tellurium, wormin’ his fat carcass to the center of the throng, “I’d propose that we forms uh committee to settle this. It ain’t hardly fair fer one man to have to settle uh momentous question like that.”

I pushes my way out of the crowd—still hangin’ onto my gun and my temper, and waves both arms fer silence. I’m commencin’ to lose my temper.

“Gents,” sez I, “hang on to yoreselves! I’m about to render uh verdict accordin’ to the evidence and my own common-sense. The Triangle makes one tally——”

“So did the Seven-A,” interrupts Ricky Henderson.

“I’m goin’ to impeach the next man what interrupts,” states the judge, and I continues:

“The Seven-A also makes one run, which makes the game uh tie so far as them tallies is concerned, but here’s the evidence: Weinie hits the ball so danged hard that she busts plumb in two. One-half uh that ball is ketched by Ren Merton, and the other half lies supine on the ground. Accordin’ to what

I've been informed, when uh feller ketches uh ball the feller what hits it is out, but I interprets it to mean, all uh the ball. Weinie runs all the way around, when he's half out, so I has to decide that the Seven-A wins this here game by uh score of one and uh half to one."

Uh feller named Service wrote uh poem oncet, in which he spoke about uh stillness yuh most could hear, but I got him beat—I could hear this one. It was so danged audible it hurt my ears, until I hears uh *click! click!* Nobody can fool me on that noise. I recognizes it right away as the preparedness racket of uh single-action Colt. The next sound is uh snicker from the judge, and the crowd begins to show signs uh life.

I tightens my grip on my six-gun and braces my feet, and then comes the *rattle, rattle, rattle*, of uh lumber wagon, and somebody yells—

"Look out!"

I didn't have uh chance to look out. Somebody mistook me fer open atmosphere and hits me plumb in the middle, and then somebody else uses my face fer uh steppin' stone.

"Ah, ha!" sez I to myself. "Somethin' ain't right." And then I staggers to my feet in time to meet the attraction.

Somethin' hits me before I gits the dirt out of my eyes, and willin' hands lifts me up. I grabs onto somethin', and finds that my hands is lovin'ly entwined around the brake-pole of uh wagon.

"Well," sez I, "I didn't git shot, anyway," and then I glances around in time to see Scenery Sims turn uh flip-flop in the bottom of the wagon, and spin on his ear. The next thing, the wagon hits uh washout and I acts as uh bumper fer one Dirty Shirt Jones, who hangs on to me like I was his long lost brother.

There ain't no time fer conversation. Dirty tries to yell somethin' in my ear, but scoots down and tells it to the front end of the wagon, and Scenery gits his boots in my face instead.

At times that wagon is runnin' on one front wheel, with all of us in the front end, and then she seems to r'ar up like uh bronc and we're deposited to the end-gate with neatness and dispatch.

I ain't never had no time yet to see what we're drivin', until on one uh my up-country trips I casually glances at our means of locomotion and observes that danged balloon ag'in.

There's about fifty feet uh rope between the wagon tongue and the bag, and, with the help of uh stiff wind, she's shore exceedin' the speed limit.

She's uh good rig so long as she seeks flat places, but after takin' uh short look into the future I opines to myself that the time ain't far distant when Ike Harper is safer off than on. Ahead of us is the Medicine and Sawtooth Hills, and I can see what's goin' to happen when that wagon hits uh washout deep enough to block the front wheels.

I glances around and sees Dirty and Scenery tryin' to anchor themselves long enough to pull the cork out of uh bottle. We're goin' too fast fer uh feller to take uh chance on jumpin' and the more I looks the more I wishes I was up there with the li'l balloon-feller, who is hangin' onto his li'l swing like uh bluejay in uh wind.

Sudden-like I gits uh great idea. If I can git hold of that rope and climb far enough away from that wagon I'd be uh heap better off than I am now, and if the rope breaks above me I won't have much farther to fall.

Did yuh ever have to crawl out on uh wagon tongue and claw yore way up uh rope, when the wind is blowin' and said tongue is first three feet and then fifteen feet off the ground—and do it with leather chaps on?

I know it can be done. I jist shut my eyes, named every brand in Yaller Rock County out loud, and when I gits down to the Z-Bar-Z I'm fifteen feet up that rope with blistered hands and shy one boot.

I reckon there must be uh heap uh wind blowin' cause that balloon swoops and pitches like uh prize buckner. I don't git off that wagon none too soon, yuh can gamble on that. I locks one leg around that rope and looks back jist in time to see that wagon take uh header into uh gully. Mebby you think that shock wasn't uh peach.

She yanks the waddin' out uh me fer uh minute, but I hangs on with everythin' from toenails to my dandruff. I glances back after uh few seconds of handsome clawin' and Dirty Shirt is jist comin' down. He shore must uh went high. I watches fer Scenery but I reckon he either didn't care to go or else he went above the spot where gravity affects danged fools.

Relieved of its drawback, that balloon opines to associate with buzzards, and we goes up so danged fast that the Sleepin' Crick country seems to be fallin' downhill on all sides. I glances up at the li'l feller and he makes motions which I interprets to mean, "Hang on!" I wondered if the blamed fool thought I was goin' to let loose?

Hangin' onto uh inch rope with blisters on yore hands ain't no joyful chore, so I hauls up uh li'l rope under my belt, and slips my gun through the loop. That's easier on my hands but it shore makes misery in my stummick.

We're driftin' with the wind all the time, and pretty soon somethin' seems to git under the earth and shove it right up at us. I sings uh song uh joy when it gits close and tries to pull that gun loose so I can jump.

It's shore fatal to try to pull uh gun and find she's caught. Comes uh rattle uh limbs and darkness covers the land.

When I awakes it ain't in no hospital with uh sweet-faced nurse leanin' over my cot. Nothin' like that showed up when Ike Harper returned to the land of the livin'.

I finds that I'm reclinin' on my back with my feet up uh tree. I rolls over so I can see why, and finds that my belt has slipped down around my knees and is looped over the limb of uh tree. I slides painful-like out of it and braces myself ag'in the tree.

"Well," sez I, "at that I believe I prefers the balloon to the maddenin' crowd." And jist then I sees uh head shove up over the crick bank, and uh weak voice opines, wailin'ly:

"Them blamed fools didn't slack the rope uh-tall. They jist climbed in and let off the brake and——"

The voice ceased and the head went out uh sight.

I fishes in my pockets fer the makin's and finds that roll uh bills. I shoves 'em back and climbs down the bank. The balloon feller is draped over uh log, unconscious.

Somethin' seems familiar about that part of the crick, and it finally dawns on me that I'm at the water-hole where me and Magpie gits our drinkin' water fer our claim. Right over the east bank is our cabin. I rolls the feller over and throws some water in his face. He looks at me in uh sad sort of uh way and shakes his head.

“Five hundred all shot to —— jist because two blamed fools wanted to ride!”

I hauls out that roll and peels her to the core. Five hundred to uh gnat’s eyelash.

“Here’s yore renumeration,” sez I, handin’ him the money. “You flew.”

He counts it careful-like and then gits to his feet. He glances all around and then starts to climb the bank.

“Wait uh minute!” I yells. “I got uh cabin right over there where we’ll stay fer uh while. No use goin’ away like that. Look at it in uh sane manner and you’ll agree that it ain’t safe fer you to try to git back alone thataway.”

“Mister.” The feller picks up uh rock about as big as my fist, and looks down at me. “While I appreciates yore kindness in comin’ way up here to pay me fer my exhibition, you jist used two words that’s obnoxious to me. Sabe? Safe and sane——!”

I turns around and ducks low, but the li’l feller was too good uh shot to miss at that range.

That rock bounces off my vertebray and I falls in the crick. I rolls out, rubs my back with one hand and reaches fer my gun with the other—but my gun is absent.

At the top of the hill the li’l feller turns and waves his hand at me. Jist to show him that I don’t blame him—I waves right back.

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